

## MAINS MASTER PROGRAM (MMP) 2024

### ETHICS – 12

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**Topic – Philosophical basis of governance & probity, Accountability & ethical Governance, Right to Information, Code of Ethics & Code of Conduct, Citizen Charter, Work Culture, Quality of Service Delivery, Utilisation of Public Funds, Challenges of Corruption.**

#### **Right to Information**

- **Key provisions of the RTI Act, 2005**
  - ✓ Legal right to seek information
  - ✓ Objective – Participation, Accountability & Transparency
  - ✓ Public Information Officer [PIO]
  - ✓ Is there any information exempted?
  - ✓ Duration?
  - ✓ Appellate Authority?
  - ✓ Information Commission – Central & State
  - ✓ Is there any need for voluntary disclosure?
  - ✓ What if the information is sought to an incorrect authority?
- **Key issues regarding implementation of the Act**
  - ✓ Inadequate processes, infrastructure, or resources [CSC]
  - ✓ Poor Awareness [13% rural & 33% urban]
  - ✓ Payment Procedures Modes [Cash, Postal orders, DD, Court fee Stamps, Non-Judicial Stamps, RTI envelope]
  - ✓ Poor record management & training of PIO's
  - ✓ Low Motivation of officials
  - ✓ Vacancies in Information commissions
  - ✓ Lack of third-party audit
- **How the Act has been weakened as per critics?**
  - ✓ Central govt to determine the Term & service conditions of CIC & SIC [2019 Amendment]
  - ✓ Exemptions under Sec.8
  - ✓ Political parties outside ambit of RTI [CIC, 2013– National Parties]
  - ✓ Vacancies in appointments to CIC & SIC
  - ✓ Digital Data Protection Act, 2023 [Protects personal information VS RTI]
  - ✓ Official Secrets Act, 1923
- **Potential conflict between RTI Act VS DPDPA**
  - ✓ Transparency Vs Privacy
  - ✓ Threshold of public interest test
- **How to address the conflict between RTI & VS DPDPA?**
  - ✓ Clear Legal framework – harmonization of RTI & DPDPA Act
  - ✓ Public Interest Assessment – balanced assessment on case-to-case basis

- ✓ Awareness & training – Official & Public
- ✓ Robust Oversight Mechanism
- **Official Secrets Act vs RTI Act**
  - ✓ Conflicting Objectives
  - ✓ Security Vs Accountability
  - ✓ Judicial Interpretation – Public interest test
- **Advantages of RTI Act**
  - ✓ Transparency & Accountability
  - ✓ Citizen participation
  - ✓ Administrative reforms
  - ✓ Improved service deliver & welfare of the people
  - ✓ Good Governance
- **Way forward**
  - ✓ Legal Awareness generation
  - ✓ Reducing conflicts
  - ✓ Logistical & capacity building
  - ✓ Oversight & enforcement

### Questions

1. Do you think Right to Information Act, 2005 has redefined the concept of accountability in governance and paves way for ethical governance? Comment [10]
2. There is a view that the Digital Personal Data Protection Act, 2023 along with the Official Secrets Act, 1923 can act as an obstacle in the implementation RTI Act, 2005. Highlight the potential conflict between laws & ways to reconcile them. [10]
3. Ritu Singh, a senior journalist in a leading news daily is widely known as an ethical reporter of news and has established her integrity in the profession over a span of two decades. She gets a credible information from one of her sources that there is gross-misutilisation of fund & illegal corrupt activities along with human rights violations happening in one of the major government infrastructural projects of national importance.

She decides to file an RTI about the project to the concerned department seeking the information relating to budgetary allocations, spending of money & progress of the project so far including the various approvals that has been granted at the various stages of the project. Knowing very well the information disclosure can result in the serious issue to the certain government officials the secretary of the concerned department makes a call to the editor in chief of her news daily and request Ritu Singh not to pursue the RTI request. The Editor in Chief accepts to the request made by the secretary conveys the matter to you & suggest not to pursue the matter any further as the Managing Director of the News daily & the secretary are close relatives. Under such circumstances,

- a) Under such circumstances what do you think are the various options available in the hands of Ritu Singh?
- b) Discuss the pros & cons of the various options.

## Code of Ethics & Code of Conduct

- What is code of ethics?
  - ✓ A Code of Ethics is a **broad set of principles** that guide the **decision-making** and **behaviour** of individuals within an organization.
  - ✓ It reflects **the organization's values, principles, and ethical standards**.
  - ✓ Its purpose is to inspire and guide **ethical decision-making and promote** a culture of **integrity and responsibility**.
  - ✓ It focusses on the **underlying spirit and intent behind** actions rather than prescribing specific behaviours.
  - ✓ Examples
    - Medical ethics – Autonomy, beneficence, non-maleficence, justice, confidentiality, informed consent etc.
    - Media ethics - accuracy & truthfulness, fairness, independence, respect to privacy etc.
    - Public Servants [2<sup>nd</sup> ARC] – Integrity, Impartiality & Objectivity, Transparency & Accountability, Empathy etc.
- What is code of conduct?
  - ✓ A Code of Conduct is a more **specific set of rules and guidelines** that dictate the expected behaviours of individuals within an organization.
  - ✓ The purpose of code of conduct is to inspire and guide **ethical decision-making** and promote a culture of integrity and responsibility.
  - ✓ It focuses on **concrete actions and behaviours** that are acceptable or unacceptable.
  - ✓ It provides clear instructions on what employees **should and should not do**.
  - ✓ **Example**
    - **Code of Conduct for civil servants** - "Employees must not accept gifts from clients or vendors."
    - **Dress Code – Schools, colleges & workplaces**

## Question

1. What do you understand by “Code of ethics” and “Code of conduct”. Explain with suitable examples.

## Citizen Charters

- **What is a citizen charter?**
  - ✓ Voluntary document of commitment to ensure quality of service delivery.
  - ✓ Components – Vision & Mission statement, Choice, Standards, Time frame, Grievance Redressal Mechanism.
- **Principles of Citizen Charter**
  - ✓ Quality, Choice, Value, Transparency, Accountability etc.
- **Importance of Citizen Charter**
  - ✓ Enhanced transparency & accountability

- ✓ Empowerment of citizens
- ✓ Grievance redressal & feedback mechanism
- ✓ Promotes Citizen participation
- ✓ Streamlining of process & efficient service delivery
- ✓ Promotes Good governance
- **Evaluation of Citizen Charter**
  - ✓ No consultative process
  - ✓ Lack of awareness about the philosophy, features & goals of the charter [service providers]
  - ✓ Lack of publicity & non-compliance
  - ✓ Lack of finances for training & logistical support
  - ✓ lack of review & updation
  - ✓ No Legal Accountability
  - ✓ Most of them are unrealistic & not formulated in local language.

### Question

1. What do you understand by citizen charter? The citizen charter has the potential to transform public administration in India. Do you agree? [10]

### Work Culture

- **What do you understand by work culture?**
  - ✓ Work culture refers to the values, beliefs, attitudes, and behaviours that characterize the way work is done within an organization.
  - ✓ It encompasses the overall atmosphere, the way employees interact, the norms for behaviour, and the expectations for performance and collaboration.
  - ✓ A positive work culture can lead to higher employee satisfaction, increased productivity, and better overall performance, while a negative work culture can result in low morale, high turnover, and decreased effectiveness.
- **Key features of work culture**
  - ✓ Values and Beliefs
  - ✓ Norms and Behaviours
  - ✓ Communication & Leadership styles
  - ✓ Recognition & Reward
  - ✓ Work Environment & work-life balance
  - ✓ Scope for professional development
- **Importance of positive work culture**
  - ✓ Employee Satisfaction and Retention
  - ✓ Increased Productivity
  - ✓ Attracting Talent & retention
  - ✓ Better Customer Service
  - ✓ Resilience and Adaptability

## Question

1. A positive work culture can lead to higher employee satisfaction, increased productivity, and better overall performance. Comment [10]

## Utilisation of Public Funds

- What does it mean?
  - ✓ The utilization of public funds refers to how government resources, derived from taxpayers' money and other public revenue sources, are allocated, managed, and spent.
  - ✓ effective utilization is crucial for ensuring that public services are delivered efficiently and that financial resources are used in ways that maximize public welfare.
- **Key aspects of utilization of public funds**
  - ✓ Budgeting
  - ✓ Spending
  - ✓ Auditing
  - ✓ Performance Evaluation
  - ✓ Legal & regulatory framework
- **Key Issues in utilization of public funds**
  - ✓ Underutilization & Misutilization
  - ✓ Corruption & diversions
  - ✓ Lack of performance audit
  - ✓ Lack of accountability
- **Reasons for Underutilization & Misutilization of Funds**
  - ✓ Politician-Bureaucratic Nexus
  - ✓ Corruption
  - ✓ Delays in Sanctions
  - ✓ Poor internal audit & CAG audit being post-mortem in Nature
- **Negative Implications**
  - ✓ Poor Quality of service delivery
  - ✓ Affect developmental activities
  - ✓ More tax burdens
  - ✓ Wastage of national resources
  - ✓ Loss of trust in the government
- **Way Forward**
  - ✓ Effective public financial management
  - ✓ Code of ethics & conduct
  - ✓ Legal & regulatory mechanisms
  - ✓ Work Culture
  - ✓ Effective external audit & accountability mechanism

## Question

1. Effective utilization of public funds is crucial to meet development goals. Critically examine the reasons for under-utilization and mis-utilization of public funds and their implications.

## Challenges of Corruption

- **What is corruption?**
  - ✓ Corruption is the abuse of power or position for personal gain, often at the expense of public good.
  - ✓ It involves actions that violate ethical standards and legal norms, resulting in a distortion of fair practices and equitable distribution of resources.
- **Forms of Corruption**
  - ✓ Bribery
  - ✓ Embezzlement
  - ✓ Nepotism & Cronyism
  - ✓ Kickbacks
  - ✓ Extortion
- **Key characteristics of corruption**
  - ✓ Abuse of Power
  - ✓ Misuse of Resources
  - ✓ Violation of Trust
  - ✓ Dishonest Behaviour
- **Causes of corruption**
  - ✓ Complex Procedures [Rules & Regulations]
  - ✓ Administrative discretion
  - ✓ Regulatory functions
  - ✓ Lack of transparency & accountability
  - ✓ Poor rate of detection & conviction
  - ✓ Poor work culture [Ethical & Moral Standards]
  - ✓ Political instability
  - ✓ Political – bureaucratic nexus
  - ✓ Weak or ineffective legislative framework
- **Legal and Administrative framework to deal with Corruption**
  - ✓ **Central Vigilance Commission**
    - supervise cases related to corruption [AIS & Central Services]
    - Vigilance [Intelligence & surveillance]
  - ✓ **Central Bureau of Investigation**
    - Investigation – cases related to corruption, serious economic offences & criminal cases
  - ✓ **Lokpal**

- Objective – establish anti-corruption body to enquire, investigate & prosecute certain public officials & civil servants engaged in acts of corruption
- Jurisdiction - PM; Ministers; MP's; Central Govt. officers – Group A, B, C & D
- Procedure - Preliminary Enquiry -> Investigation -> Report -> Lokpal -> Permission for Prosecution -> Special Court / Departmental Enquiry
- Supervisory powers – CBI & CVC
- ✓ **Whistle Blowers Protection Act, 2014**
  - Competent Authority & mechanisms to receive complaints
  - Safeguards from Victimization
  - Protection of identity of complainant
  - Penalty of Identity disclosure [3years]
- **Way Forward**
  - ✓ Strong legal & regulatory framework
  - ✓ Transparency & Accountability
  - ✓ Effective Grievance redressal mechanism
  - ✓ Fostering work culture
  - ✓ Value & moral education & training

## Questions

1. A public servant misusing his power to help is near & dear ones is a form of corruption. Do you agree? Explain with suitable examples. [10]
2. Corruption is the manifestation of the failure of core values among the public officials. Explain with suitable examples.
3. Mr. Prakash, a mid-level government official in charge of overseeing public procurement in a state infrastructure project, faces an ethical dilemma. His role involves ensuring that contracts are awarded fairly and transparently, with the best interests of the public in mind. However, he is approached by a contractor, Mr. Kumar, who is willing to offer him a substantial bribe to secure a lucrative contract for his company, despite Mr. Kumar Company is among the best company the government is considering awarding the contract.

Under such circumstances there is an unexpected financial emergency arising in Mr. Prakash family in form a medical emergency for his mother who is to be urgently treated for a rare type of surgery in brain. Doctors have advised Mr. Prakash to immediately arrange for the funds and carry out the surgery at the earliest as any delay may complicate the situation.

- a) What do you think Mr. Prakash should do in the present circumstances? Will he be justified in taking the bribe?
- b) What are the potential dilemmas in the present case for Mr. Prakash?